7/10/2025 - Public Statement Hearing - 25-E-0072, 25-G-0073

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 25-E-0072 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

CASE 25-G-0073 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

PUBLIC STATEMENT HEARING

DATE: JULY 10, 2025 at 6:00 p.m.

LOCATION: 1776 Eastchester Rd
Bronx, New York 10461

BEFORE: ALJ JAMES COSTELLO
ALJ NICHOLAS PLANTY

Reported by John Sheffield

7/10/2025 - Public Statement Hearing - 25-E-0072, 25-G-0073

(The hearing commenced at 6:00 p.m.)

ALJ PLANTY: Could we go on the record, please? Thank you.

I call case 25-E-0072, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service, and case 25-G-0073, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

Good evening. My name is Nicholas Planty, and with me is James Costello, and we are two of the three administrative law judges for the Department of Public Service assigned to these rate cases, and we are presiding over this public statement hearing.

The public statement hearing is being held, on behalf of the New York State Public Service Commission, regarding the proposed changes in the electric and gas delivery rates and practices of Consolidated Edison Company of New York, which I will refer to as Con Edison. Just to be clear, we are

employees of the Department of Public Service. We are not here on behalf of Con Edison. We are here to make a record of your statements for the Commission's consideration.

Under New York State law, the Public Service Commission must consider the utility's proposals and may adopt or reject them, in full or in part, or modify them. At this time, the Commission must decide these cases by December 30th, 2025. However, that date may be subject to further extension.

Regardless of how these cases proceed, the Public Service Commission will make the final decision regarding the Company's terms and conditions for providing electric and gas services. This hearing is being held so you can provide your comments on Con Edison's proposals for the Commission's consideration. In making its decision, the Commission will consider the evidentiary record in these cases and the comments made at this hearing.

The Public Service Commission has seven members: The chairperson, Rory Christian, and six commissioners: James Alesi, David Valesky, John

Maggiore, Uchenna Bright, Denise Sheehan, and Radina Valova.

The topic of today's event is limited to these particular rate cases. This is not the proper forum to raise issues that are unrelated to the Company's rate case filings. To address specific issues about your Con Edison account, Con Edison has materials that provide a dedicated phone number and email for customers to get assistance related to specific customer service and billing inquiries. That information is on the tables set up outside.

Statements you make today will become part of the official record. The court reporter here will prepare a transcript of the hearing, which will be included in the record of these proceedings so that your comments can be considered by all members of the Commission. When it is ready, the transcript also will be available for public view on the Department of Public Service website.

Today's hearing is not a question and answer session. We are here to listen to your comments. If you do not wish to speak today at today's hearing, but you would like your views

included in the record, there are other ways to comment. You can submit comments on the Department's website, which is www.dps.ny.gov. You can submit comments by regular mail; that will be to the Honorable Michelle L. Phillips, Secretary to the Public Service Commission at 3 Empire State Plaza, Albany, New York 12223. Or you can also call the toll free opinion line at 1(800)335-2120, and that number is set up to receive comments from in-state callers twenty-four hours a day. That information is also available in the notice that was issued for these hearings.

Regardless of how comments are submitted, they will be given equal consideration by the Commission. According to the Secretary's notice for this event, comments must be received by November 21st, 2025, to ensure the Commission is able to consider them prior to the final decision. If you would like to make a statement here today, and you have not done so already, please fill out a registration card, which you can do at the table to my left.

Please speak slowly and clearly so

that the court reporter can accurately capture your statement for the record. To the extent you wish to read a lengthy written statement, we ask that you provide an oral summary or overview here today and then submit the full statement, in writing, by email or mail.

We please ask you to be respectful and courteous when delivering your comments. We would also ask that you please silence your cell phones, and also, if you could please, when you come to speak, state and spell your name for the record.

Okay. So our first speaker is Ann Barry.

ALJ COSTELLO: And just --

ALJ PLANTY: There is a microphone --

ALJ COSTELLO: -- have her use the microphone.

And we ask, just for the purposes of the record, that you spell -- state and spell your name.

MS. BARRY: Okay. My name is Ann Barry. A-N-N, Barry, B-A-R-R-Y.

ALJ COSTELLO: Thanks.

MS. BARRY: I just want to -- I don't know if you can see this? It's a report from Con Edison. They sent -- send them to you for home energy reports. And here, it says my energy use is good. I have a couple of those, and they're saying my energy use is good.

For the same time period, I have a Con Edison bill for $590.56. That's based on a good energy use. The majority of that bill is delivery -- delivery costs. So I think the bill speaks for itself when they tell me -- including the -- all the -- the energy use, for example, to the March bill. It's for gas. It is $122.45. Then, it says my total gas supply charge is -- including the taxes, it comes to $135.64.

But my delivery charges -- they have three separate delivery charges. One for $32.64, another for $241.88, and another for $27.42. And then there are taxes and surcharges, bringing my total delivery charges to $329.06. And it's very similar with the electricity. I have other bills here that I can read. They're all very similar.

And my February bill is $687.32. The

same -- the -- so the gas usage, it's -- the total gas supply charges are $154.56. I'm not going to read out the whole -- I already did the other one. But the delivery charges are $387.81. My total electric charges are $49.71. My total delivery is $95.25.

Here, too, I have another report -- energy report saying I have good -- I -- I'm conservative, I guess, in my electricity use. Over the last couple of years, my -- my bills have been like this for the last couple of years. It's impacted the quality of my life. It's taken a lot of wealth from me, paying bills like that. They are very similar in the summer. I didn't bring my recent one because I was away for three weeks, visiting my daughter.

So -- but I conserve energy. There's a running joke in my house: Ma, could I have a degree? And you know, if it -- if it gets 70 degrees in the winter, it's a treat. They wear sweaters, they sit on the couch with blankets.

I -- instead of replacing windows, I've ripped up three windows in my home. I have

insulation, I have a -- LED lights. Everything that you could do to conserve energy, I've done. So I don't know what more I could do to lower my bill, except to not just use any heat or any electricity. And then, I still think I would be charged delivery charges for whatever -- you know, just to have the refrigerator on.

My neighbors experience the same thing I'm experiencing. I don't -- I don't know if something -- you could say, like, it's hearsay, but one neighbor told me my other neighbor -- and he goes, did you know so and so's sitting in their car because they can't afford to put the air conditioning on? So for all these years of paying bills like that, it's just cumulative. The impact is cumulative. I used to consider myself middle class. I'm slowly not being middle class.

I think I've covered everything, but I can't imagine how to pay even more. And it's, like, my -- my neighbors, too. How could they pay more? What if something happened? The other day, I had heat exhaustion because I didn't keep the air up, because I'm afraid of what my bill is going to be.

So I would consider that they not increase delivery charges. Thank you.

ALJ PLANTY: Thank you.

If you would like to make a statement and have not done so already, there are registration cards here. Fill it out if you would like to speak.

MR. QUANSAH: If I want to come up and speak, can I speak from here?

ALJ PLANTY: If you do just come up to speak -- well, I guess, we could give the --

ALJ COSTELLO: Go ahead.

MR. QUANSAH: I can project my voice and maybe --

ALJ PLANTY: Okay.

MR. QUANSAH: -- if --

ALJ COSTELLO: We'll give you the microphone.

ALJ PLANTY: Thanks.

ALJ COSTELLO: I just need you to fill this out.

MR. QUANSAH: Yes. Okay.

ALJ COSTELLO: But fill that out first.

MR. QUANSAH: Okay. Do I take it back up?

ALJ COSTELLO: Yeah.

MR. QUANSAH: Good evening. My name is spelled Reuben Quansah, spelled R-E-U-B-E-N Q-U-A-N-S-A-H. And -- and I just, I have a question for the -- not really a statement. I don't --

ALJ COSTELLO: This is not a question and answer session. This is just to hear comments.

MR. QUANSAH: Okay. I think something that is an issue in -- in the city is that a lot -- there are a lot of folks who don't really have an alternative, any -- I mean, who has an alternative of any source when it comes to electricity. And it's easy to, sort of, feel like there's no alternatives, no options other than just bleeding by -- when your community and your family, you know, basing your -- whether it's three years, whether it's two generations, you know, there's a tie to the community.

And -- but when you don't have an option besides how you source your electricity, you know, that -- that is a real issue for -- for a lot

of folks who aren't only faced with dealing with, you know, high electric bills. But even in (indiscernible), we don't have options for that -- high rents. I mean, the market rates and how that matches what people pay -- oh, sorry. Sorry. I'm going to keep debating, this doesn't line up.

I forgot the name of the article, but it was an article in The New Yorker several years ago, where they looked at residents by train lines, and looked at the average income by a train line, and compared that to the market rate for the same areas. In some cases, it was three or four times higher.

And so folks at -- at least trying to pay their rent, let alone cover electricity costs. So to have it go up, to the folks who are probably making the least, I think that displaces the folks who would ideally be benefiting from the higher costs going to infrastructure and other things. They won't be the people who have to come back. And so it makes me wonder, you know, what are the other options if you live in an apartment?

I mean, if you're lucky to live in a -- a house, where maybe you can get solar -- maybe

you can get -- I don't know, wind energy, back-up batteries. Like, how can something like that be feasible, because I feel like that's -- that's to the right thing, that, you know, in some capacity -- in some capacity needs to go.

And I think it's -- that's not part of the equation. I mean, I think if there was room for innovation, people come up with stuff. And if there's space to -- I mean, I guess it -- this is a forum to hear from -- from the community, but I think it's -- it's more than just listening, but creating spaces where there are, like, incubators.

I mean, I work in the community, and I see so many students who come up with ingenious stuff, but there aren't that many outlets to, sort of, you know, leverage that genius in the community. Folks are going out to other schools in other states and -- and other spaces, but what does it mean for the people here? And I think if there -- I -- I don't -- I don't know which county, but I know some counties across New York State, there's, like, a moratorium on getting that -- back-up batteries.

You know, I don't -- I don't know what

the case is in New York City, but I know that -- I believe it was something revolving around having battery back-up. So people who may live in townhouses that had -- that are renting, like, they don't -- like, ideally, they would have that option to, you know, own -- or advocate for using those systems with the latest tech for solar to subsidize some of their costs.

And if it starts there, perhaps it can be a model for how we work in other spaces, you know? If an apartment building has some sort of initiative where they have solar across the -- you know, on -- on -- up on their roof, but somehow that's tied into the benefit of the -- the tenants. Because you see solar popping up on roofs around the city, but there's really no clarity on where people living in the apartments are connected to that, you know?

And a little bit more transparency there, I think, would make a difference. If folks knew exactly what infrastructure style that's being worked on, that they could be connected to, I think that would make the world of a difference, because -- and inflation increases at rate of .3 percent for

people's pay in their jobs. You're lucky if you get one, you know?

And I don't even know where to begin to think about what folks that live on their own, like, that -- particularly the solar battery could use at home, you know? In case of the outages, and I know I can charge a -- I think it's, like, 300 watts or whatever, which is nothing. But at least I know I'll be able to charge flashlights, I'll be able to use an electric oven perhaps -- different things that may hold me over if there's a serious blackout.

But where these spaces where folks can actually -- would be thinking what that means and leverage different resources to help field those challenges and overcome it, you know? Again, that's all I can say. Thank you.

ALJ PLANTY: Thank you.

That is the end of the speakers that we have registered at this time. I am going to leave the hearing open for about another 15 minutes. In the meantime, please go off the record.

(Off the record)

(On the record)

THE COURT REPORTER: On the record.

ALJ PLANTY: Okay. One of our previous speakers, Ann Barry, would like to make another statement.

MS. BARRY: Thank you. Ann Barry, and I had forgotten to mention that the bills are a -- a ratio of three-to-one. Compared to the actual gas charge and the delivery charge, it's three-to-one. With the electricity, it's almost double the amount of electricity cost and cost to deliver it. So the ratio is -- and it was just recently, I think, they were asking for an increase in the actual supply, and I think they got that, too.

So I'm just thinking, like, a three-to-one is a crazy number for using $50 worth of gas, but you have to pay $150 just to deliver it. It's kind of mind-boggling in my opinion. So I just wanted to add that because it was kind of mind-boggling. Thank you for allowing me. That's it.

ALJ PLANTY: Thank you.

Next, we have Ana Martinez.

MS. MARTINEZ: Hello, everyone. Are you ready? Okay.

ALJ PLANTY: Yes.

MS. MARTINEZ: My name is Ana Martinez. I'm here with my father, Antonio Martinez. We've been residents of the Bronx for over thirty years, and we've been living at the home that we have, over twenty-five years. We also have tenants that we take care of as well. And my father really wanted to just express his comments. He speaks mostly Spanish, so that's why I'm speaking for him.

ALJ PLANTY: I'm sorry to interrupt.

MS. MARTINEZ: Yeah.

ALJ PLANTY: We do have Spanish translation --

MS. MARTINEZ: Oh, perfect.

ALJ PLANTY: -- available if that's something you would like to use? An interpreter?

MS. MARTINEZ: I think it's fine for now, but thank you.

ALJ PLANTY: Okay.

MS. MARTINEZ: Yeah.

Okay. So he was saying that during the wintertime, he paid -- at times the heat and electricity can go sometimes around $900 for a -- a

building with three apartments. And now, in the summertime, it's reached $450, and we barely are home. We don't watch, like, a lot of TV. We don't put the -- a lot of the lights in the home.

You know, like, it's like, you try your best to, kind of, not use that much electricity. And even so we -- we do look at our statements, and one of the biggest things is that the delivery charges are way too high. My father is a retired man already, so he's already trying to deal with that budget, and it's just not working, so.

Looking forward, we're unsure of how we're going to maintain that home with these rising costs that everybody seems to be having. So that's why we're here, to just express our opinion. And also, like the gentleman in the back said, we also don't have other choices. Other than Con Edison, what other choice do we have? So thank you so much everybody.

ALJ PLANTY: Could you spell your name one more time --

MS. MARTINEZ: Sure.

ALJ PLANTY: -- please?

MS. MARTINEZ: A-N-A, Ana, Martinez, M-A-R-T-I-N-E-Z.

ALJ PLANTY: Okay, thank you.

MS. MARTINEZ: Um-hum.

ALJ COSTELLO: Thank you for your time.

ALJ PLANTY: Okay. As we currently do not have any more speakers signed up -- just for the record, it's about 6:25, so I will hold the hearing open for a bit longer to see if anyone else would like to speak or anyone else shows up.

If we could go off the record, please?

(Off the record)

(On the record)

ALJ PLANTY: On the record, please.

For the record, it is now 6:34 p.m. We do not have anyone else who signed up -- signed a card or wishes to speak. So I just would like to reiterate that there are other ways to make comments and that the comment deadline is November 21st, 2025. You can submit a comment online at www.dps.ny.gov. You may mail comments to the Honorable Michelle Phillips, Secretary to the Public Service Commission

7/10/2025 - Public Statement Hearing - 25-E-0072, 25-G-0073

at 3 Empire State Plaza, Albany, New York 12223.

And again, there's also a toll free opinion line at 1(800)335-2120, and that line is set up to take calls from in-state callers twenty-four hours a day. I would also add that there will be another public statement hearing on July 22nd, 2025, in Staten Island, at the Jewish Community Center of Staten Island, in the Bernikow building. And that's at 6 -- 6 p.m. on July 22nd, and also on July 23rd. July 23rd, at 6 p.m. in the same place, the Jewish Community Center of Staten Island, Bernikow building.

Okay. I would like to thank everyone who showed up today and participated. Thank you very much for taking time out of your day to come here and do so. And with that, the hearing is now concluded, and we'll go off the record, please.

(The hearing concluded at 6:34 p.m.)

7/10/2025 - Public Statement Hearing - 25-E-0072, 25-G-0073

STATE OF NEW YORK

I, JOHN SHEFFIELD, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription, consisting of pages 1 through 20, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 17th day of July, 2025.

JOHN SHEFFIELD, Reporter